

26STCP01735 26STCP01735

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-31

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Case Number: 26STCP01735 Hearing Date: July 31, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Ricberay,
Inc.'s Petition for Permanent Injunctive Relief Pursuant to Civil Code section
798.88 is granted. The proposed order
filed on 07/27/2026 is signed and entered this date.

Analysis:

On May 5, 2026,
Petitioner Ricberay, Inc. ("Petitioner") filed the instant Petition for
Permanent Injunctive Relief Pursuant to Civil Code section 798.88 against
Respondent Esmerelda Delgado ("Respondent"). The Court granted Petitioner's
request to advance the hearing date, filed on June 10, 2026. Petitioner filed
proof of substitute service on June 12, 2026.

At the initial
hearing on June 18, 2026, the Court granted Respondent's oral request for a
continuance and ordered that the opposition be filed and served no later than
07/17/2026. (Minute Order, 06/18/26, p. 1.) Petitioner filed a supplemental
declaration on July 23, 2026. To date, no opposition to the Petition has been
filed.

Discussion

Petitioner moves
pursuant to Civil Code section 786.88 for an order enjoining Respondent from
continuing violations of the rules of Petitioner's Capri Gardens Mobilehome

Park, located at 3541 N. Baldwin Avenue, El Monte, California. (Pet., ¶2.) Respondents' Mobilehome is located on Space 49 of the Park ("the Premises"). (Ibid.) Respondent's alleged violations include (1) improperly storing items such as appliances, indoor furniture, debris and junk outside of the Mobilehome and on the Premises; (2) failing to maintain the condition of the Mobilehome and its accessory structures; and (3) keeping three dogs that were not approved by Park Management at the Premises, leaving the dogs unattended outside the Mobilehome, and tethering or tying the dogs to a fence. (Id. at ¶9.)

Petitioner

requests an injunction against Respondent prohibiting further violations and an award of reasonable attorney fees and costs. (Id. at pp. 8:17-9:3.)

Legal Standard

The Mobilehome Residency Law ("MRL") gives management an injunctive relief remedy for violations of reasonable park rules and regulations. (Civ. Code, § 798.88.) Specifically, management may obtain a restraining order against a continuing or recurring violation of any "reasonable rule or regulation." (Civ. Code, § 798.88, subd. (b); *Rancho Santa Paula Mobilehome Park, Ltd. v. Evans* (1994) 26 Cal.App.4th 1139, 1142.) At the time of the hearing, the court shall issue the injunction if it finds by clear and convincing evidence the existence of a continuing or recurring violation of a "reasonable rule or regulation." (Civ. Code, § 798.88, subd. (d).) The duration of the injunction may not exceed three years. (Civ. Code, § 798.88, subd. (d).) A prevailing party on an action brought under this chapter is entitled to reasonable attorney's fees and costs. (Civ. Code, § 798.85.)

Discussion

Although the moving statute does not provide for a specific notice period, Respondent is entitled to reasonable notice prior to issuance of an order on the Petition. (See *Menefee & Son v. Dent. of Food & Agriculture* (1988) 199 Cal.App.3d 774, 781.) Failure to give notice is a violation of due process. (*Jones v. Otero* (1984) 156 Cal.App.3d 754, 757.) Petitioner filed a proof of service demonstrating that Respondent was sub-served by delivery and mailing of the Petition and Notice of Hearing Date on June 12, 2026. (Proof of Substitute Service, filed 06/12/26, ¶5.) At the June 18, 2026 hearing, the Court continued the hearing at Petitioner's request

to July 30, 2026. The Court finds

Respondent was provided with reasonable notice.

Substantively,

the Petition is supported by declarations and exhibits documenting the parties' contractual relationship and Respondent's violations of the Park's rules.

Respondent has resided at the Park since approximately April 1, 2012, pursuant to a written Rental Agreement.

(Pet., Wills Decl., ¶2 and Exh. 1.) Pursuant to that lease, Respondent agreed to the Park's rules and

regulations. (Id. at Exh. 2, ¶12.) Respondents have violated Park rules

13, 13.A, 13.F, 13.G, 25.A, 25.B, 25.B.(5), 25.C., 25.D, 25.D(2), 25.D(6),

25.D(7) and 25.E. (Pet., Willis Decl., ¶4.) Specifically, Respondent's

violations include (1) improperly storing items such as appliances, indoor

furniture, debris and junk outside of the Mobilehome and on the Premises; (2)

failing to maintain the condition of the Mobilehome and its accessory

structures; and (3) keeping three dogs that were not approved by Park

Management at the Premises, leaving the dogs unattended outside the Mobilehome,

and tethering or tying the dogs to a fence. (Ibid.)

Petitioner

served Respondent with written Seven-Day Notices directing compliance with the Park's rules on August 4, 2025, August 29, 2025, and November 11, 2025. (Pet., Wills Decl., ¶¶5-11 and Exhs. 4-6.)

However, Respondent continues to fail to comply, as demonstrated by

Petitioner's photographic evidence. (Id.

at ¶¶5-12 and Exhs. A-E.) Even after the initial hearing, Respondent continued

leaving the dogs unattended around the Park and having items improperly stored

around the Mobile Home. (Pet. Supp. Wills Decl., ¶¶4-7 and Exhs. F-M.)

The Petition,

therefore, provides clear and convincing evidence of Respondent's violations of

the Park's reasonable Rules and Regulations. The Petition to enjoin

Respondent's violations pursuant to Civil Code section 798.88 is granted and

Petitioner is entitled to an award of its reasonable attorney's fees and costs,

according to proof.

Conclusion

Petitioner Ricberay,

Inc.'s Petition for Permanent Injunctive Relief Pursuant to Civil Code section

798.88 is granted. The proposed order

filed on 07/27/2026 is signed and entered this date.

Moving party to give
notice.